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Case Number: 24CHCV00697 Hearing Date: July 8, 2026 Dept: F43

Dept. F43

Hearing Date: 07-08-26

Case # 24CHCV00697, Buenrostro v.

Bolototspy, et al.

Trial Date: 07-27-26

MOTION TO CONTINUE

TRIAL

MOVING PARTIES: Defendants Carlos Horacio Guarino, Michael

Bolotsky, and The Appliance Doctor

RESPONDING PARTY: Plaintiff Rosa Buenrostro

RELIEF REQUESTED

Order continuing trial to October 2026, a
corresponding continuance of the final status conference, and that all
discovery cutoff dates be controlled by the new trial date.

RULING: Motion is denied.

SUMMARY OF ACTION

This personal injury action arises from

vehicle-pedestrian collision that occurred at the intersection of Hubbard Street and Eldridge Avenue on December 5, 2023.

Plaintiff Rosa Buenrostro (Plaintiff) alleges defendant Michael Bolotsky made a left turn into her as she was crossing the street in a designated pedestrian crosswalk, causing Plaintiff to fly back 5-10 feet on the ground and to suffer significant bodily injuries.

According to Plaintiff, defendants Carlos Horacio Guarino and The Appliance Doctor owned the vehicle driven by defendant Bolotsky.

On March 5, 2024, Plaintiff filed a complaint

asserting two causes of action:

negligence / "negligence per se" against defendant Bolotsky; and

negligent entrustment against defendants Guarino and The Appliance Doctor. Each defendant filed and served an answer.

From January 16, 2026 through June of 2026,

counsel exchanged emails concerning Plaintiff's mental examination. On May 6, 2026, Defendants filed a motion to compel Plaintiff's mental examination.

The court granted the motion on June 24, 2026, granting the parties until July 14, 2026 to conduct the exam.

(6/24/26 Minute Order.)

On June 11, 2026, Defendants filed the

subject motion to continue trial to October of 2026, to continue the Final Status Conference, and to adjust the fact and expert discovery cutoff dates according to the new trial date. Plaintiff filed

an opposition on June 24, 2026, and Defendants replied on June 30, 2026.

SUMMARY OF ARGUMENTS

Defendants assert an inability to obtain

essential material evidence (Plaintiff's mental examination) despite their diligent efforts and Plaintiff only putting her mental health at issue on December 5, 2025. According to

Defendants, they have been unable to depose Plaintiff's healthcare providers because of Plaintiff's late disclosure of seven new health care providers on December 5, 2025 and Plaintiff waiting until March 18, 2026 to produce requested medical records for the newly disclosed health care providers. The requested depositions are essential material evidence that Defendants have been unable to obtain despite their diligent efforts. Moreover, trial in defense counsel's other case is scheduled for the same day as trial in this

case.

In opposition, Plaintiff asserts Defendants fail to demonstrate “good cause” for continuing trial. According to Plaintiff, Defendants had notice of Plaintiff’s treating providers and medical conditions for months and two years before the date currently set for trial. In July 23, 2024, Plaintiff provided form interrogatory responses listing the injuries attributable to the accident, including post-concussive syndrome, depression, posttraumatic stress disorder, anxiety, cognition difficulties, and memory issues. Updated responses were provided on November 5, 2025. Defendants did not serve subpoenas for specific mental health records until September 11, 2025, despite being provided with specific provider names in June of 2025. Furthermore, Plaintiff provided updated provider and mental health treatment information to Defendants on December 5, 2025. Later reports from Plaintiff’s treatments were disclosed to Defendants but Defendants did not issue subpoenas until between January 30, 2026 through June 4, 2026. Moreover, Defendants did not notice provider depositions until June 2026, two weeks before the discovery cutoff. Finally, defense counsel’s claim that he has a conflicting trial in another matter is insufficient to support continuing trial because counsel knew about the conflicting dates as early as November of 2025 but waited over six months later to seek relief.

REQUESTS FOR JUDICIAL NOTICE

Pursuant to Evidence Code section 452, subdivision (d), the court takes judicial notice of the court records in Daniel H. Lee vs. Ford Motor Company, et al., Orange County Superior Court, Case No. 30-2021-01201916-CU-BC-CJC.

ANALYSIS

A. Timeline of Relevant Events

Plaintiff files a Complaint on March 5, 2024.
All defendants are served by August 21, 2024.

On July 23, 2024, Plaintiff served responses to defendant Guarino’s first set of form interrogatories, identifying numerous treating providers, including Northridge Hospital Medical Center, Dr. Louis

Flores, San Fernando Doctors, California Back and Pain Specialists, ProHealth Advanced Imaging, Premier Forensic Psychology, Bionix Pharmacy, Advanced Center for Neurology and Headache, and Shin Imaging.

(Reply Declaration of Richard McGreevy, Exh. A; Declaration of Brittany Farias ¶ 2.) The responses also disclosed various injuries

arising from the collision: traumatic

brain injury, post-traumatic stress disorder, depression, anxiety, cognitive difficulties, memory issues, and other injuries arising from the subject

collision. (Farias Decl. ¶ 3; Reply

McGreevy Decl., Exh. A at pp. 17-18 [responding to form interrogatory 6.4 with Advanced Center for Neurology and Headaches and Premier Forensic Psychology, Dr. Alex Avila].) No mental health providers were identified.

On March 3, 2025, prior defense counsel deposed Plaintiff.

On June 11, 2025, plaintiff's counsel Brittany Farias served a policy limits demand on prior defense counsel which included updated medical records and treatment information. (Farias Decl. ¶ 4.)

On July 10, 2025, Leach & McGreevy, LLP, substituted in as counsel of record for Defendants. (7/10/25 Substitution of Attorney Form.)

Beginning September 11, 2025, Defendants served several subpoenas for medical, billing, imaging, pharmacy, and psychological records on Advanced Center for Neurology and Headache; California Back and Pain Specialists; Dr. Louis Flores; Northridge Hospital Medical Center; ProHealth Advanced Imaging; San Fernando Doctors; Premier Forensic Psychology; Bionix Pharmacy; Shin Imaging; Skyline Smiles; and other providers. (Farias Decl. ¶¶ 9-10.) Defendants also served multiple subpoenas on Premier Forensic Psychology seeking Plaintiff's psychological records. (Id. ¶ 11.)

On October 13, 2025, Ms. Farias served a second policy limits demand with additional records and treatment information, including records relating to Dr. Basem Attum, Skyline Smiles, Neurological Injury Specialists, and other providers. (Farias Decl. ¶ 5.)

On November 5, 2025, Plaintiff served supplemental responses to defendant Guarino's first set of form interrogatories numbers 6.2, 6.3, and 6.4. (Reply Declaration of Richard McGreevy, Exh. B [providing updated treatment information and identifying major depressive disorder, memory issues, cognition difficulties, insomnia, anxiety].)

On November 24, 2025, trial was continued to July 27, 2026, in Orange County Superior Court Case No. 30-2021-01201916-CU-BC-CJC.

On December 5, 2025, Ms. Farias sends defense counsel a third policy demand letter with updated records and treatment information. (McGreevy Decl. ¶ 3; Farias Decl. ¶ 7.)

On January 16, 2026, Defendants sent their first request for Plaintiff's mental examination. (Farias Decl. ¶ 16.)

On January 30, 2026, Defendants filed a motion to take Plaintiff's second deposition. The court granted the motion, giving the parties until May 1, 2026 to conduct the deposition. (4/01/26 Minute Order.)

From January 30, 2026 through June 4, 2026, Defendants served additional subpoenas directed to Neurological Injury Specialists, California Neurosurgical Institute, Nova Surgical Institute, Olive View Medical Center, Providence Holy Cross Medical Center, Southern California Hospital, Optum providers, San Fernando Health Center, San Fernando Osteoporosis Center, and numerous additional providers. (Farias Decl. ¶ 12.)

On March 18, 2026, Plaintiff served a fourth policy demand, disclosing additional treatment records and updates concerning NeuroPraxis and other providers. (Farias Decl. ¶ 8.)

On June 10, 2026, Ms. Farias sent defense counsel Brian Leach an email, representing a willingness to stipulate to an early October 2026 trial date but not to reopening fact or expert discovery. (Reply McGreevy Decl., Exh. C

at p. 1.)

Defendants first noticed provider depositions

in June of 2026, for several providers from June 22 and 26, 2026: Dr. Mark Liker, Dr. Aaron Filler, Dr. Yuraj Grewal, Lisa Espinoza, Dr. Alex Avila, Dr. Basem Attum, Dr. Louis Flores, Dr. Kristen Mewaldt, and Dr. Arpine Bagerajian.

(Reply McGreevy Decl. ¶ 5; Farias Decl. ¶¶ 14-15.) Dr. Mewaldt and Dr. Bagerajian are the only two depositions that have occurred because the other providers are not available on the noticed dates. (Reply McGreevy Decl. ¶ 5.)

B. Continuing Trial Dates

“A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application under the rules in chapter 4 of this division, with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered.” (Cal. Rules of Court, rule 3.1332(b).)

“Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: (1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances; . . . (4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice; [and] (6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts[.]” (Cal. Rules of Court, rule 3.1332(c)(1), (4), (6).)

“[T]he court must consider all the facts and circumstances that are relevant to the determination. These may include: (1) The proximity of the trial date; (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party; (3) The length of the continuance requested; (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; (5) The prejudice that parties or witnesses will suffer as a result of the continuance; . . . (7) The court's calendar and the impact of granting a continuance on other pending trials;

[and] (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance[.]” (Cal. Rules of Court, rule 3.1332(d)(1)-(5), (7), (10).)

1. Defendants

fail to demonstrate “good cause” for continuing trial to obtain Plaintiff’s mental examination because Plaintiff put her mental health at issue in July of 2024 and the court has already granted Defendants’ motion to compel Plaintiff’s mental examination.

Defendants represent Plaintiff only recently put her mental condition at issue in the December 5, 2025, policy demand letter.

The court has already granted Defendants’ motion to compel Plaintiff’s mental examination subject to specific limits. However, Defendants misrepresent when Plaintiff put her mental and psychological injuries at issue.

Plaintiff first put her mental health at issue on July 23, 2024 in responding to defendant Guarino’s first set of form interrogatories. Plaintiff’s verified response to form interrogatory number 6.2 revealed that Plaintiff attributed several psychological injuries to the accident: Traumatic Brain Injury, Post-concussive syndrome, Posttraumatic Stress Disorder, Depression, Anxiety, Cognition Difficulties, Memory Issues. (Reply McGreevy Decl., Exh. A at pp. 13-14.) In response to form interrogatory number 6.3, Plaintiff listed several complaints concerning mental health injuries that she attributed to the accident: (a) Cognition Difficulties; Including Difficulties with recall (b) Remain the same (c) Everyday; (a) Memory Issues (b) Remain the same (c) Everyday; and (a) Insomnia (b) Remains the same (c) A few times a week. (Reply McGreevy Decl., Exh. A at pp. 14-15, 17.) Plaintiff also disclosed several treatment providers and economic damages: Advanced Center for Neurology and Headaches, evaluation on 06/26/2024 and a cost of \$1,750.00; Premier Forensic Psychology, Dr. Alex Avila, evaluation on 02/26/2024 and a cost of \$4,200.00. (Reply McGreevy Decl., Exh. A at pp. 17-18.) Although Plaintiff did not identify any future treatments or the identities of providers who advised her on future treatments for her injuries until later, Defendants’ own evidence demonstrates they had notice of Plaintiff’s alleged mental health injuries almost two years ago.

Second, Plaintiff's July 23, 2024, form interrogatory responses identified several providers: Northridge Hospital Medical Center, Dr. Louis Flores, San Fernando Doctors, Dr. Vikram Singh and California Back & Pain Specialists, Dr. Alex Avila and Premier Forensic Psychology, Advanced Center for Neurology and Headaches, Bionix Pharmacy, Shin Imaging, and Los Angeles City Fire Department. (Reply McGreevy Decl., Exh. A at pp. 17-19.) Ms. Farias claims Defendants did not subpoena records (billing, imaging, films, and psychological records) from these entities or individuals until over a year later on September 11, 2025. (Farias Decl. ¶¶ 9-11; Opposition at pp. 5:26-7:1.)

Furthermore, depositions were noticed on the following dates: June 12, 2026 (Dr. Louis Flores); and June 15, 2026 (Advanced Center for Neurology and Headache and Dr. Yuvraj Grewal). (Opposition at pp. 6:4-7, 7:5-9.) The depositions were noticed for less than a week before the discovery cutoff. No depositions were noticed for Northridge Hospital; San Fernando Doctors; Dr. Vikram Singh and California Back and Pain Specialists; ProHealth Advanced Imaging; Bionix Pharmacy; Shin Imaging Center; and Los Angeles Fire Department.

Defendants provide no explanation for the yearlong delay and demonstrate no diligence from prior counsel or current counsel. Nor does the July 2025 substitution of counsel justify the delay.

Thus, Defendants fail to demonstrate an inability to request a mental examination before January 16, 2026.

2. Defendants

fail to demonstrate why they waited six to eighteen months to subpoena records or notice the depositions of Plaintiff's health care providers.

Defendants also claim they have been unable to depose Plaintiff's health care providers due to Plaintiff waiting until December 5, 2025 to disclose seven new providers and until March 18, 2026 to produce medical records for many of these providers. (McGreevy Decl. ¶ 9.) Defendants' motion fails to identify these specific providers, but the reply identifies the following: Dr. Mark Liker, Dr. Aaron Filler, Dr. Yuraj Grewal, Lisa Espinoza, Dr. Alex Avila, Dr. Basem Attum, Dr. Louis Flores, Dr. Kristen Mewaldt, and Dr. Arpine Bagerajian.

(Reply McGreevy Decl. ¶ 5.)

The evidence does not fully support Defendants' assertions. Based on the moving papers, all healthcare providers and treating doctors were identified no later than December 5, 2025, with Plaintiff serving a fourth policy demand in March of 2026 with updated billing information and reports from recommended treatments Plaintiff had already disclosed to Defendants in the form interrogatory responses and the prior policy demands. (Farias Decl. ¶¶ 4-8.)

Furthermore, the timing of the noticed depositions indicates a pattern of delay by Defendants which may have exacerbated the unavailability of key witnesses.

a. Advanced

Center for Neurology and Headache (ACNH) and Dr. Yuvraj Grewal

As stated above, Plaintiff first identified Advanced Center for Neurology and Headache in her form interrogatory responses on July 23, 2024. (Reply McGreevy Decl., Exh. A at p. 17:17-21.) Yet, Defendants waited until September 11, 2025 and January 30, 2026 to subpoena billing records. (Opposition at p. 7:5-9.) Moreover, Defendants did not notice Dr. Yuvraj Grewal's June 25, 2026, deposition until June 15, 2026. Defendants claim Dr. Grewal did not appear at the deposition and the deposition has been noticed twice. (Reply McGreevy Decl. ¶ 5.) However, Defendants do not explain what efforts were made to schedule and notice the deposition between December 5, 2025 and June 15, 2026.

b. California Neurosurgical Institute and Dr.

Mark Liker

Plaintiff first received treatment with Dr. Mark Liker at California Neurosurgical Institute on October 28, 2025. (Opposition at p. 8:17-19.) Plaintiff claims she disclosed the treatment in her November 5, 2025, supplemental form interrogatory responses and disclosed Dr. Liker as the treating provider who recommended additional surgeries in the December 5, 2025, policy limits demand. (Opposition at p. 8:19-21.) Defendants then subpoenaed medical and billing records on January 30, 2026, and noticed Dr. Liker's deposition (for June 22, 2026) on June 12, 2026. (Opposition at p. 8:19-23.) In contrast to Plaintiff's assertions, the supplemental form interrogatory responses do not mention Dr.

Liker or the California Neurosurgical Institute. (Reply McGreevy Decl., Exh. B.) Thus, it appears the earliest Defendants knew about both was December 5, 2025. Defendants assert Dr. Liker stated the first date he is available for a deposition is July 21, 2026, but do not state when they first contacted him about a deposition. (Reply at p. 5:10-16.) Absent proof that any efforts were made to depose Dr. Liker from December 5, 2025 through June 11, 2026, the court cannot determine whether Defendants were diligent in scheduling and noticing Dr. Liker's deposition.

c. NeuroGrafix and Dr. Aaron Filler

Plaintiff was treated by Dr. Aaron Filler at Neurological Injury Specialists on July 10, 2025.

(Opposition at p. 8:11-16.)

Plaintiff's counsel received Dr. Filler's report on September 24, 2025 and disclosed the report to Defendants on October 13, 2025 in the second policy demand. Defendants did not issue a subpoena until January 30, 2026, and noticed Dr. Filler's June 25, 2026 deposition on June 15, 2026. Plaintiff notes the deposition date was one day before the discovery cutoff. Defendants claim this provider was first disclosed in the November 2025 supplemental responses but do not dispute Plaintiff's assertions about the October 2025 demand letter. (Reply at p. 5:6-9.) Defendants also assert Dr. Filler is unavailable for a deposition until July 10, 14, and 21. Defendants again fail to explain why they waited almost six months to notice Dr. Filler's deposition or to detail any prior attempts to schedule the deposition.

d. NeuroPraxis
and Lisa Espinoza

Plaintiff claims that during a follow-up visit with Dr. Yuvraj Grewal (ACNH) on November 18, 2025, Dr. Grewal recommended cognitive behavioral therapy and vestibular rehabilitation therapy. (Opposition at p. 8:23-25.) Plaintiff disclosed the recommended treatment to Defendants in her December 5, 2025, policy limits demand. The first evaluation occurred five days later on December 10, 2025, Plaintiff received the Evaluation Report on December 18, 2025, and Plaintiff's first treatment occurred on February 19, 2026. Plaintiff's counsel received the treatment reports on March 25, 2026. At the same time, Plaintiff confusingly states the reports were first disclosed to Defendants on March 18, 2026, in Plaintiff's supplemental demand. Defendants do not dispute that Plaintiff disclosed the recommended treatment on December

5, 2025 but claim Lisa Espinoza has not provided a new deposition date. (Reply at p. 5:17-22.) Defendants do not state Ms. Espinoza's

relevance to NeuroPraxis or when they sent Ms. Espinoza's deposition notice. Although Plaintiff's promptly disclosed the treatment reports to Defendants in March of 2026, it is unclear why Defendants did not subpoena information from NeuroPraxis and notice Ms. Espinoza's deposition after learning of the recommended treatment on December 5, 2025.

e. Premier

Forensic Psychology and Dr. Alex Avila

Plaintiff first disclosed Plaintiff's diagnoses from Dr.

Alex Avila at Premier Forensic Psychology in her July 23, 2024, responses to Defendant's first set of form interrogatories.

(Opposition at p. 6:17-23; Reply

McGreevy Decl., Exh. A at p. 18.)

Defendants served four subpoenas on September 11, 2025, seeking psychological records but waited until January of 2026 to request a mental examination. Defendants provide no explanation for waiting until June of 2026 to depose Dr. Avila or their efforts to schedule the deposition between July of 2024 through June of 2026.

f. California

Back Pain Specialist and Dr. Basem Attum

Plaintiff was first treated by Dr. Basem Attum on March

17, 2025. (Opposition at pp.

7:22-8:2.) Plaintiff first disclosed the

treatment to Defendants in the June 11, 2025, policy limits demand and

disclosed and provided an updated recommendation in the October 13, 2025,

policy limits demand. Defendants then

subpoenaed records on September 11, 2025 and January 30, 2026. However, Defendants waited until June 12, 2026 to notice Dr. Attum's deposition.

Defendants again fail to explain why they waited until shortly before

the discovery cutoff to notice Dr. Attum's deposition. Nor does Defendants explain their efforts to schedule the deposition.

The court declines to go into further discussion about

other named individuals (Dr. Louis Flores, Dr. Kristen Mewaldt, and Dr. Arpine

Bagerajian) because the moving papers show a similar pattern—Defendants delayed

noticing depositions until right before the discovery deadlines and a month

before trial is scheduled to begin. The timing of Plaintiff's original form interrogatory responses, Plaintiff's supplemental responses, and four policy demand letters indicates that Plaintiff contributed very little to Defendants subpoenaing relevant records and promptly provided updated information when possible. Defendants fail to provide evidence of any efforts to depose Plaintiff's healthcare providers between December of 2025 through May of 2026. This indicates a lack of diligence.

Therefore, Defendants fail to demonstrate "good cause" for continuing trial to depose Plaintiff's healthcare providers.

3. Because

defense counsel had notice of the trial date in this matter when they substituted in to represent Defendants and had notice of the conflicting trial date in the Orange County matter no later than November 24, 2025, Defendants fail to demonstrate "good cause" for continuing trial due to conflicting trial dates.

On December 4, 2024, this matter was scheduled for trial beginning on July 27, 2026.

(12/04/24 Minute Order - Case Management Conference at p. 3.) On November 24, 2025, trial was continued to July 27, 2026 in Orange County Superior Court Case No.

30-2021-01201916-CU-BC-CJC. Defense

counsel provides no explanation concerning why he did not inform the Orange County Court, this court, or Plaintiff's counsel of the conflict sooner.[1]

4. Defendants have

failed to meet their burden of demonstrating "good cause" and diligence in conducting discovery.

Defendants have failed to demonstrate "good cause" for continuing trial because Defendants have demonstrated a lack of diligence in depositing Plaintiff's healthcare providers.

The court acknowledges that Defendants changed counsel almost a year ago.

However, Defendants were on notice about Plaintiff's mental condition as early as July of 2024. Plaintiff

subsequently sent Defendants four policy demands (June, October, and December

of 2025 and March of 2026) with updated reports and healthcare providers, provided updated discovery responses in November of 2025, and continuously provided updated information concerning Plaintiff's actual and recommended treatment within two weeks to a month after receiving updated reports from health care providers. Defendants raise the most recent policy demand, March of 2026, which Defendants claim disclosed new providers. However, it appears several of the health care providers were disclosed in the July 2024 form interrogatory responses, the November of 2025 supplemental interrogatory responses, and the three policy demands pre-dating March of 2026. The court notes Defendants have issued subpoenas seeking Plaintiff's record but present no evidence that Plaintiff has withheld any records or challenged the subpoenas served on her healthcare providers and treating entities. Defendants have failed to provide any insight into their efforts to notice depositions before June of 2026. Defendants claim several of the providers are available on or before August 17, 2026. (Reply McGreevy Decl. ¶ 5.) The timing of the deposition notices and this motion suggest Defendants are attempting to delay trial because they failed to exercise diligence between January of 2026 and June of 2026. Finally, Defendants' failed to notify this court or Plaintiff's counsel of the conflicting trial dates despite having knowledge of the conflict for over six months.

Here, it is not an abuse of discretion for the court find that Defendants have failed to establish "good cause" for a trial continuance, considering Defendants failed to conduct the instant expert discovery despite having the requisite knowledge of relevant legal issues. (Johnson v. Alameda County Medical Center (2012) 205 Cal.App.4th 521, 532-533; A & B Painting & Drywall, Inc. v. Superior Court (1994) 25 Cal.App.4th 349, 356-357 [Continuance not warranted where supporting declaration fails to "explain what efforts were made to take necessary depositions or why they could not have been taken earlier."].)

The court notes Ms. Farias previously stated a willingness to stipulate to an early October trial date but would not agree to reopen fact or expert discovery.

(Reply McGreevy Decl., Exh. C at p. 1.)

However, because Defendants have made no showing of "good cause" and do not expand on their current efforts to reschedule depositions, the court finds that Defendants' motion fails.

Therefore, the court denies Defendants'

motion to continue trial to October of 2026.

CONCLUSION and ORDER

Defendants Carlos Horacio Guarino, Michael Bolotsky, and The Appliance Doctor motion to continue trial is denied.

Defendants Carlos Horacio Guarino, Michael Bolotsky, and The Appliance Doctor to give notice.

[1] Defendants' reply also raises a new basis for continuing trial (Code Civ. Proc., § 473). The court does not consider new issues raised for the first time in a reply brief. (Reichardt v. Hoffman (1997) 52 Cal.App.4th 754, 764.)